

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #05	CCRB Case #: 201700425	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 01/16/2017 6:45 PM	Location of Incident: Mott Avenue and Beach 22nd Street	18 Mo. SOL 7/16/2018	Precinct: 101		
Date/Time CV Reported Wed, 01/18/2017 2:33 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/18/2017 2:33 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Scott Hughes	09264	953977	101 PCT
2. POM Thomas Sheridan	28656	955479	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Thomas Sheridan	Abuse: Police Officer Thomas Sheridan stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Scott Hughes	Abuse: Police Officer Scott Hughes stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Scott Hughes	Abuse: Police Officer Scott Hughes questioned § 87(2)(b)	C . Substantiated
D . POM Thomas Sheridan	Abuse: Police Officer Thomas Sheridan questioned § 87(2)(b)	D . Substantiated
E . POM Scott Hughes	Abuse: Police Officer Scott Hughes threatened to arrest § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via phone on January 18, 2017.

On January 16, 2017, at approximately 6:45 p.m., PO Thomas Sheridan and PO Scott Hughes of the 101st Precinct stopped § 87(2)(b)'s vehicle on the suspicion that her car windows were illegally tinted near the intersection of Beach 22nd Street and Mott Avenue in Queens (**Allegations A and B**). PO Hughes asked § 87(2)(b) to step out of her car, and she did so. PO Hughes allegedly said, "Where are the guns?" (**Allegation C**). PO Hughes and PO Sheridan also asked § 87(2)(b) additional questions about § 87(2)(b)'s knowledge of gun activity in her neighborhood, and PO Hughes asked, "Where are the drugs? Where is the crack?" (**Subsumed within Allegation C and Allegation D**). § 87(2)(b) told PO Hughes that she had no knowledge of gun or drug activity, and PO Hughes allegedly said, "If you don't tell us about the guns, you're going to Central Booking" (**Allegation D**). The officers then allowed § 87(2)(b) to leave the scene without arresting her or issuing her a summons (BR 01).

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b). As of February 16, 2017, § 87(2)(b) had not filed a notice of claim regarding this incident (BR 02).
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is § 87(2)(b)'s first CCRB complaint (BR 03).

PO Hughes has been a member of the NYPD for four years and has been the subject of one prior CCRB complaint involving one physical force allegation, which was closed as unsubstantiated. § 87(2)(g)

This is PO Sheridan's first CCRB complaint in his three year tenure as an NYPD officer.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that only PO Hughes questioned her about guns and stated that PO Sheridan did not speak with her. PO Sheridan stated that both he and PO Hughes questioned § 87(2)(b) about guns. § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Scott Hughes stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B –Abuse of Authority: Police Officer Thomas Sheridan stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that she drove alone from her mother's house in Brooklyn toward her home at § 87(2)(b) in Queens (BR 01). § 87(2)(b) turned right from Mott Avenue onto Beach 22nd Street, and shortly thereafter, a marked police vehicle activated its lights and sirens and stopped § 87(2)(b) on Beach 22nd Street. § 87(2)(b) stated that she did not commit any traffic infractions and that her windows were not tinted. After questioning her, § 87(2)(b) stated that the officers allowed her to leave without issuing her a summons or arresting her.

According to PO Hushes and PO Sheridan, PO Hughes drove their vehicle while PO Sheridan sat in the front passenger's seat (BR 04-05). PO Hughes and PO Sheridan stated that they stopped § 87(2)(b) because they observed that her car windows were tinted to such a degree that they could not see into the vehicle. The officers stated that they used their discretion in deciding not to issue § 87(2)(b) a summons for her window tints.

The police may stop an automobile when they possess a reasonable suspicion of criminal activity (BR 06). People v. Ulerio, 1 Misc. 3d 901(a).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Therefore, it is recommended that **Allegations A and B** be closed as **Unsubstantiated**.

Allegation C – Abuse of Authority: Police Officer Scott Hughes questioned § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Thomas Sheridan questioned § 87(2)(b)

According to § 87(2)(b) she consumed one “sip” of vodka approximately four hours prior to driving. § 87(2)(b) stated that she did not smell like alcohol during the incident.

§ 87(2)(b) stated that PO Hughes asked for her license and registration upon approaching her car, and § 87(2)(b) provided those documents to him. PO Hughes then told § 87(2)(b) to step out of the car, and § 87(2)(b) did so. PO Hughes told § 87(2)(b) that he smelled alcohol, and § 87(2)(b) disputed his assertion. PO Hughes asked § 87(2)(b) where she was going, and § 87(2)(b) stated that she was going to her house on § 87(2)(b) in Queens. PO Hughes then allegedly said, “Where are the guns?” § 87(2)(b) told PO Hughes that she did not know anything about guns. PO Hughes asked § 87(2)(b) whether she knew anything about gun activity approximately four times, and § 87(2)(b) told him that she did not know anything about guns each time. PO Hughes then allegedly said, “Ok, so where are the drugs? Where’s the crack?” § 87(2)(b) replied that she did not know. PO Hughes then returned § 87(2)(b)'s license and registration and allowed her to leave without arresting her or issuing her a summons.

According to the officers, PO Hughes took § 87(2)(b)'s license and registration and then asked her to step out of the car because he smelled the odor of alcohol emanating from the vehicle. § 87(2)(b) exited the vehicle and walked to the back of the car with PO Hughes and PO Sheridan. Once outside of the car, PO Hughes and PO Sheridan stated that they did not observe anything about § 87(2)(b) that indicated that she was intoxicated, and neither officer smelled the odor of alcohol on § 87(2)(b)'s breath.

According to PO Hughes, he asked § 87(2)(b) where she was going, and § 87(2)(b) provided an address on § 87(2)(b) in Queens. Both PO Hughes and PO Sheridan stated that they were aware of an incident that occurred in the summer of 2016 in which a male civilian was shot and killed. The officers stated that the shooting occurred at the intersection of § 87(2)(b) and that the murdered civilian's brother was also shot and killed at the same location in 2015. § 87(2)(b)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

PO Hughes and PO Sheridan stated that they asked § 87(2)(b) if she knew anyone in her neighborhood who carried guns. The officers asked those questions due to their knowledge of the prior shootings that occurred near § 87(2)(b)'s home. PO Hughes also asked § 87(2)(b) additional questions about her knowledge of gun activity in her neighborhood, but PO Hughes could not recall exactly what questions he asked or exactly how many questions he asked.

PO Hughes did not recall whether or not he asked § 87(2)(b) any questions about drugs. PO Sheridan acknowledged that the officers did ask § 87(2)(b) if she had seen or heard of anyone who dealt drugs, but PO Sheridan did not recall which officer questioned § 87(2)(b) about drugs. PO Sheridan first stated that the officers questioned § 87(2)(b) about drugs because they were “trying to get drugs off the streets.” PO Sheridan then stated that he believed there to be drug activity near § 87(2)(b)'s residence because he was aware that gangs operate in that area. PO Hughes also believed that there was drug activity near § 87(2)(b)'s home § 87(2)(e)

§ 87(2)(g)

§ 87(2)(g)

According to the officers, § 87(2)(b) told them that she had no knowledge of drug activity, and the officers then allowed § 87(2)(b) to leave without arresting her or issuing her a summons. The officers allowed § 87(2)(b) to go free based on their discretion.

When an officer asks questions that would cause a person to reasonably believe that he or she is suspected of wrong doing, the encounter becomes a common-law inquiry requiring that the officer has founded suspicion that criminality is afoot (BR 08). People v. Hollman, 79 N.Y.2d 181 (1992).

Officers may request information from a person based on an objective credible reason even in the absence of concrete indicators of criminality. Absent other factors, an officer's knowledge that a discrete area of a city is a high crime area is an insufficient justification for informational requests (BR 09). People v. McIntosh, 96 N.Y.2d 521 (2001).

§ 87(2)(g)

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§ 87(2)(g) it is recommended that **Allegations C and D** be closed as **Substantiated**.

Allegation E – Abuse of Authority: Police Officer Scott Hughes threatened to arrest § 87(2)(b)

While the officers questioned her, § 87(2)(b) alleged that PO Hughes said, “If you don’t tell us about the guns, you’re going to Central Booking.”

PO Hughes and PO Sheridan denied that PO Hughes said, “If you don’t tell us about the guns, you’re going to Central Booking,” and PO Hughes and PO Sheridan denied that PO Hughes threatened to arrest § 87(2)(b) in any way.

§ 87(2)(g) Therefore, it is recommended that **Allegation D** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

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§ 87(2)(g), § 87(4-b)

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date